



Notification Waiver Determination

Francisco Partners – Command Alkon

Acquisition	Colossus Buyer L.P., controlled by funds advised by Francisco Partners Management, L.P. (Francisco Partners) applied for a notification waiver in respect of its proposed acquisition of all of the equity interests in Project Potter Holdings, LLC, together with its subsidiaries including Command Alkon Australia Pty Ltd (Command Alkon), that are currently held by Thoma Bravo LP and certain other equity holders, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	31 August 2026

Parties to the Acquisition	The acquirer, Francisco Partners, is a global investment firm headquartered in San Francisco. It is a technology-focused investment firm with significant experience investing in and supporting technology companies. The target, Command Alkon, is headquartered in Ohio and consists of several software companies that deliver automation software solutions. These solutions are used in the heavy building materials industry for purposes including pricing and quoting, order taking, scheduling and delivery, dispatching, batching, ticketing, truck tracking and truck management, and quality control, in connection with the production of materials such as ready-mixed or pre-cast concrete, cement, aggregates and asphalt. In Australia, Command Alkon supplies customers via its subsidiary Command Alkon Australia Pty Ltd.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given there is no horizontal or vertical overlap between Francisco Partners (or its connected entities) and Command Alkon in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.

	Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**